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EXAMPLE DOCUMENT. Draaihals Packaging (Pty) Ltd is a fictitious company. Every company, person, address, date, figure and reference number in this example is made up; only the Care Net letterhead and any public emergency number are real. For guidance only; not a document to sign or rely on.

Example for a Health and Safety File, Section K: Contractors, visitors and the public

Written Agreement with a Contractor (Mandatory)

OHS Act section 37(2) agreement with a contractor, with its File checklist

About this example	Detail
Company in the example	Draaihals Packaging (Pty) Ltd, a fictitious company
Where it is filed	Section K: Contractors, visitors and the public
Published by	Care Net Consultants, as guidance for companies building a Health and Safety File

How to use this example

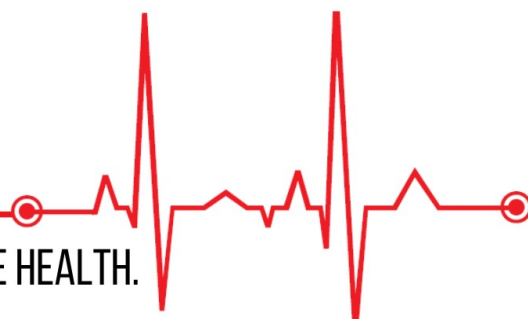
This example shows the form and content Care Net recommends for this document in a Health and Safety File. Adapt it to your company, your sites and your appointments; your registered Health and Safety practitioner confirms it before your File is released. Not legal advice.

Contents

1. Parties and work
2. Purpose of this agreement
3. The contractor agrees to
4. The employer agrees to, and monitoring
5. Contractor File checklist
6. Signatures



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Written Agreement with a Contractor (Mandatory)

OHS Act section 37(2) agreement with a contractor, with its File checklist

1. Parties and work

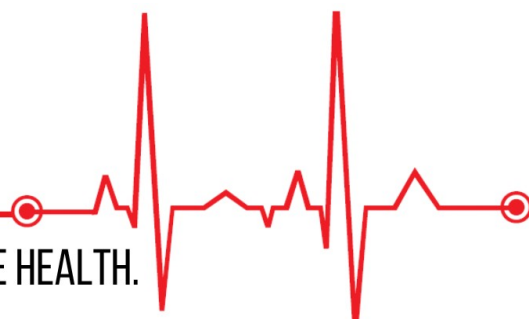
Item	Detail
Employer	Draaihals Packaging (Pty) Ltd, 22 Kiaat Street, Rosslyn Industrial Park, Pretoria (the employer)
Contractor (mandatory)	Kleinjantjie Electrical and Maintenance CC, 7 Marula Avenue, Akasia (the contractor)
Work	Replacement of the main distribution board and the lighting circuits in the warehouse at the Rosslyn site
Period	2 March 2026 to 30 April 2026, or until the work is handed over and signed off
Employer contact	Pieter van Wyk, Plant Manager (appointed under section 16(2))
Contractor contact	Sipho Mahlangu, Member and Site Supervisor

2. Purpose of this agreement

The contractor is a mandatory of the employer while it does the work above. Under **section 37(2) of the OHS Act**, the employer and the contractor agree in writing on the arrangements and procedures the contractor will follow to meet the OHS Act on the employer's premises. This agreement records those arrangements. It does not remove the employer's own duties to its employees and visitors, and each party remains responsible for its own acts and omissions.

3. The contractor agrees to

1. Meet the OHS Act and every regulation that applies to the work, and hold its employees and subcontractors to the same standard.
2. Give the employer its contractor File (checklist in clause 5) before work starts, and keep it current on site.
3. Do a task based risk assessment for the work and brief every worker on it before work starts.



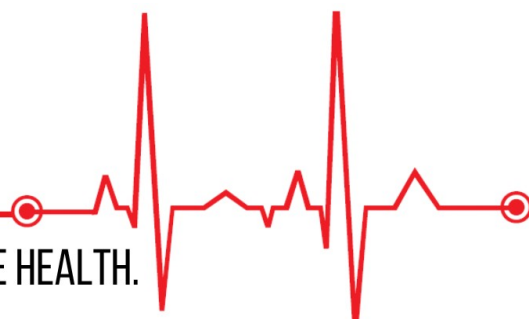
4. Appoint competent persons in writing, including an electrician registered for the installation work, and give the employer proof of the contractor's registration as an electrical contractor.
5. Before hand back, give the employer a certificate of compliance, with its test report, for the new distribution board and lighting circuits, issued by a registered person.
6. Make sure every worker has done the employer's site induction and wears the protective equipment the risk assessment sets.
7. Work under the employer's permit to work system for isolation, lockout and work at height.
8. Report every incident, near miss and unsafe condition to the employer's contact on the same day, and use no subcontractor without the employer's written consent.

4. The employer agrees to, and monitoring

- Tell the contractor about the hazards on its premises that may affect the work, including forklift routes and stored packaging.
- Induct every contractor worker, issue permits to work, provide the isolation points and keep its own employees clear of the work area.
- Inspect the work area daily, record the inspection in the contractor coordination register, and stop any work that places a person in danger. Work resumes only once both contacts agree the danger is controlled.
- Accept hand back of the work only once the certificate of compliance and its test report have been received and checked, and file them in the Health and Safety File.

5. Contractor File checklist

Document	Received	Checked by	Date
Letter of good standing under COIDA, valid for the work period	Yes	P. van Wyk	25/02/2026



Document	Received	Checked by	Date
Contractor's signed health and safety policy	Yes	P. van Wyk	25/02/2026
Task based risk assessment and safe work procedures for the work	Yes	P. van Wyk	26/02/2026
Written appointments of the site supervisor and competent persons	Yes	P. van Wyk	26/02/2026
Registration and training certificates for the electricians	Yes	P. van Wyk	26/02/2026
Proof of the contractor's registration as an electrical contractor	Yes	P. van Wyk	26/02/2026
Certificates of fitness showing the outcome only (fit, fit with restrictions, unfit)	Yes	P. van Wyk	26/02/2026
Personal protective equipment issue record	Yes	P. van Wyk	26/02/2026
Tool and equipment inspection register	Yes	P. van Wyk	27/02/2026
Site induction attendance register	Yes	P. van Wyk	02/03/2026
Emergency contacts and first aider on site	Yes	P. van Wyk	02/03/2026
Certificate of compliance and test report for the new board and circuits, issued by a registered person	Due at hand back	P. van Wyk	Before hand back

Medical documents in the contractor File show the fitness outcome only. Clinical records stay with the contractor's occupational health practitioner.

6. Signatures

For the employer: Chief Executive Officer
Lerato Molefe, Date: _____

For the contractor: Member
Sipho Mahlangu, Date: _____

End of the example. The company, people and records in it are fictitious; the cover page explains how to use it.



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